

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aliza Klingenstein	Team: Squad #07	CCRB Case #: 202104976	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/17/2021 1:12 PM	Location of Incident: 113th Precinct stationhouse	18 Mo. SOL 2/17/2023	Precinct: 113		
Date/Time CV Reported Thu, 08/19/2021 4:06 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 08/19/2021 4:06 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Kenneth Miklas	02052	940473	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jamil Khan	26585	965238	113 PCT
2. POM Thomas Marzocchi	02190	965792	113 PCT
3. POM Matthew Brustad	22510	952505	113 PCT
4. POM Checheng Tsao	03280	963782	113 PCT
5. POM Abraheem Chaudhry	14386	967809	113 PCT
6. DT3 Hollyann Yearwood	01966	940121	113 DET

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Kenneth Miklas	Abuse: Sergeant Kenneth Miklas refused to provide his name to § 87(2)(b)	A . Substantiated
B . SGT Kenneth Miklas	Discourtesy: Sergeant Kenneth Miklas acted discourteously toward § 87(2)(b)	B . Unfounded
C . SGT Kenneth Miklas	Off. Language: Sergeant Kenneth Miklas made remarks to § 87(2)(b) based upon race.	C . Unfounded
D . SGT Kenneth Miklas	Discourtesy: Sergeant Kenneth Miklas spoke discourteously to § 87(2)(b)	D . Unfounded
E . SGT Kenneth Miklas	Abuse: Sergeant Kenneth Miklas threatened to remove § 87(2)(b) to the hospital.	E . Substantiated
F . SGT Kenneth Miklas	Off. Language: Sergeant Kenneth Miklas made offensive remarks to § 87(2)(b) based upon perceived mental status.	F . Unfounded
G . SGT Kenneth Miklas	Discourtesy: Sergeant Kenneth Miklas spoke discourteously to § 87(2)(b)	G . Unfounded
H . SGT Kenneth Miklas	Abuse: Sergeant Kenneth Miklas forcibly removed § 87(2)(b) to the hospital.	H . Substantiated

Case Summary

On August 19, 2021, § 87(2)(b) filed this complaint via the CCRB Call Processing System.

On August 17, 2021, at approximately 1:12 p.m., § 87(2)(b) went to the 113th Precinct stationhouse in Queens to speak to Detective Patrick Nozdrovicky of the 113th Precinct Detective Squad, who § 87(2)(b) knew from his investigation into a criminal complaint she had filed. While at the stationhouse, Sergeant Kenneth Miklas of the 113th Precinct spoke to § 87(2)(b) and did not provide his name upon request (**Allegation A: Abuse of Authority, substantiated**). Sgt. Miklas allegedly threw § 87(2)(b) papers on the ground (**Allegation B: Discourtesy, unfounded**) and allegedly called her “Nigga” (**Allegation C: Off. Language, unfounded**) (**Allegation D: Discourtesy, unfounded**). Sgt. Miklas told § 87(2)(b) that if she did not leave the stationhouse, she would be removed to the hospital (**Allegation E: Abuse of Authority, substantiated**). § 87(2)(b) asked why, and Sgt. Miklas allegedly stated, “You’re crazy” (**Allegation F: Off. Language, unfounded**) (**Allegation G: Discourtesy, unfounded**). Sgt. Miklas then forcibly removed § 87(2)(b) to the hospital (**Allegation H: Abuse of Authority, substantiated**).

Two Body-Worn Camera (BWC) videos were used to analyze the allegations (**Board Review 01 & 02**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Kenneth Miklas refused to provide his name to

§ 87(2)(b)

Allegation (B) Discourtesy: Sergeant Kenneth Miklas acted discourteously toward § 87(2)(b).

Allegation (C) Off. Language: Sergeant Kenneth Miklas made remarks to § 87(2)(b) **based upon race.**

Allegation (D) Discourtesy: Sergeant Kenneth Miklas spoke discourteously to § 87(2)(b)

Allegation (E) Abuse of Authority: Sergeant Kenneth Miklas threatened to remove § 87(2)(b) **to the hospital.**

Allegation (F) Off. Language: Sergeant Kenneth Miklas made offensive remarks to § 87(2)(b) **based upon perceived mental status.**

Allegation (G) Discourtesy: Sergeant Kenneth Miklas spoke discourteously to § 87(2)(b)

Allegation (H) Abuse of Authority: Sergeant Kenneth Miklas forcibly removed § 87(2)(b) **to the hospital.**

§ 87(2)(b) testified that she went to the 113th Precinct stationhouse to speak to Det. Nozdrovicky, who was the investigator assigned to her case involving harassment from § 87(2)(b) half-brother (**Board Review 03**). § 87(2)(b) brought a folder of new evidence to add to her case file. In the stationhouse vestibule, § 87(2)(b) spoke to Sgt. Miklas and repeatedly asked to speak to Det. Nozdrovicky, but she believed no officers wanted to help her. § 87(2)(b) began to leave, and Sgt. Miklas called her back. § 87(2)(b) handed Sgt. Miklas her papers and stated they were documents for Det. Nozdrovicky. Sgt. Miklas read the papers, threw them on the ground, and stated, “Not today.” Sgt. Miklas sat § 87(2)(b) in a chair outside the front entrance and muttered, “Nigga” under his breath towards nine officers who stood behind him. Sgt. Miklas stated § 87(2)(b) had to go in an ambulance, and when § 87(2)(b) asked why, Sgt. Miklas stated, “You’re crazy.” Sgt. Miklas called for an ambulance, and § 87(2)(b) was removed to the

psychiatric ward of § 87(2)(b) § 87(2)(b)

In Police Officer Abraheem Chaudhry of the 113 Precinct's BWC at minute mark 00:12, PO Chaudhry approaches § 87(2)(b) who sits in a chair in the stationhouse vestibule (**Board Review 01**). At 1:00, PO Chaudhry requests § 87(2)(b) name, and § 87(2)(b) speaks into her cellphone and does not answer. At 03:10, PO Chaudhry asks for § 87(2)(b) information to locate her case, and § 87(2)(b) states she does not know what case PO Chaudhry is referring to and that she is anonymous. At 05:02, PO Chaudhry walks away, and at 08:10, Detective Hollyann Yearwood of the 113th Precinct Detective Squad approaches § 87(2)(b) in the vestibule. During this conversation, Det. Yearwood listens to § 87(2)(b) discuss her case and repeatedly asks § 87(2)(b) why she visited the stationhouse and how exactly the NYPD can assist her. § 87(2)(b) provides incoherent answers and cannot clearly explain what she seeks from the officers. After approximately nine minutes, Det. Yearwood returns to the desk at 17:35, shakes her head, and states, "EDP." At 17:50, PO Chaudhry states, "Can you uh, just tell Mik? Thank you for trying."

At 20:05, Sgt. Miklas approaches § 87(2)(b) in the vestibule [PO Chaudhry's BWC does not fully capture the audio from this conversation]. At 20:34, Sgt. Miklas tells § 87(2)(b) she needs to return to the stationhouse when Det. Nozdrovicky is present, and he asks if § 87(2)(b) wants to file a new report. § 87(2)(b) remains seated and at 20:52, Sgt. Miklas tells § 87(2)(b) she cannot stay. At 20:57, § 87(2)(b) stands up and begins to exit before returning to her seat at 21:05. At 21:10, Sgt. Miklas approaches § 87(2)(b) again, and § 87(2)(b) stands and walks to the front door. Sgt. Miklas tells § 87(2)(b) she cannot keep returning to the stationhouse as she is not telling the officers what is happening, and at 21:22, § 87(2)(b) asks why the officers will not let her leave. Sgt. Miklas responds, "I am letting you go outside. Go outside," but § 87(2)(b) remains standing and states she has evidence for her case. At 22:08, § 87(2)(b) raises her voice and states the officers have made her uncomfortable, before she exits the stationhouse at 22:20.

Sgt. Miklas' BWC opens outside the stationhouse entrance (**Board Review 02**). At 00:30, § 87(2)(b) steps into the frame and appears to be recording on her cellphone while yelling at Sgt. Miklas and PO Chaudhry, who stand in front of the stationhouse entrance. This continues until Sgt. Miklas states at 01:04, "If you do not leave, you're going to the hospital." At 01:11, § 87(2)(b) states from outside the door, "What's your name?" followed by, "What the fuck?" as PO Chaudhry prevents § 87(2)(b) from following Sgt. Miklas inside. At 01:33, Sgt. Miklas instructs PO Chaudhry to place § 87(2)(b) in handcuffs and states she is going to the hospital. At 01:40, § 87(2)(b) asks why, and Sgt. Miklas states, "You're going to get checked out by a doctor." At 02:37, PO Chaudhry escorts § 87(2)(b) to a chair near the entrance and Police Officer Checheng Tsao of the 113th Precinct places § 87(2)(b) paperwork on the ground. At 06:15, Sgt. Miklas tells EMS § 87(2)(b) has a schizophrenic history and the EMTs read § 87(2)(b) paperwork. At 10:15, an EMT tells Sgt. Miklas that § 87(2)(b) history shows no prescribed medication. At 10:30, the EMT adds, "We could take her if you guys want and get her checked out, but other than that it's..." before trailing off. At 10:38, Sgt. Miklas tells EMS § 87(2)(b) saw words on buildings and assumed someone broke into her house, stole her paperwork, and is harassing her. At 10:48, an EMT nods in § 87(2)(b) direction and states, "Alright."

Sgt. Miklas testified that PO Chaudhry first alerted him to § 87(2)(b) and stated § 87(2)(b) had been loud and aggressive towards him and civilians, although Sgt. Miklas did not know how § 87(2)(b) had been aggressive (**Board Review 04**). Det. Yearwood told Sgt. Miklas that § 87(2)(b) suffered from schizophrenia, although Sgt. Miklas did not know how Det. Yearwood learned this. When Sgt. Miklas observed § 87(2)(b) she repeatedly entered and exited the stationhouse and maintained an aggressive demeanor by speaking loudly and approaching officers

up to a few inches away [BWC does not show § 87(2)(b) closely approaching officers]. § 87(2)(b) appeared frustrated that officers refused to accept the evidence she brought for her case, although Sgt. Miklas did not recall why the officers refused or what § 87(2)(b) stated. Sgt. Miklas asked § 87(2)(b) if she took medication and she stated she did not have medication, which Sgt. Miklas interpreted to mean she was prescribed medication but did not take it. Sgt. Miklas determined § 87(2)(b) needed to leave the stationhouse because she was loud and verbally [never physically] combative, so he instructed § 87(2)(b) to leave four or five times, but she refused. Sgt. Miklas told § 87(2)(b) that if she did not leave, she would be removed to the hospital, because he wanted to give her another chance to leave voluntarily. If § 87(2)(b) had left, it would not have been necessary to remove her to the hospital, and there was never a reason to arrest her.

Sgt. Miklas believed § 87(2)(b) was a threat to herself and others, and thus needed to be removed to the hospital, due to her schizophrenic history, refusal to leave the stationhouse, and overall aggressive demeanor. However, from what Sgt. Miklas observed, there was nothing specific § 87(2)(b) did to indicate she posed a threat to herself or others. When § 87(2)(b) asked why she was going to the hospital, Sgt. Miklas stated it was because she needed to speak to a doctor. Sgt. Miklas never called § 87(2)(b) “crazy,” nor did he hear another officer use this term. Sgt. Miklas denied stating or hearing another officer state “Nigga” at any point during the incident. At an unknown time during the incident, Sgt. Miklas momentarily held § 87(2)(b) papers before returning them to her, but he never placed or threw them on the ground. When EMS arrived and asked Sgt. Miklas what happened, Sgt. Miklas stated § 87(2)(b) had a schizophrenic history and had behaved aggressively towards civilians and officers. EMS asked Sgt. Miklas what he wanted to do, and he stated he wanted § 87(2)(b) to go to the hospital. Ultimately, it was Sgt. Miklas’ decision to remove § 87(2)(b).

Upon viewing section 01:08 - 01:22 of his BWC, Sgt. Miklas believed § 87(2)(b) asked for PO Chaudhry’s name when she made this request. Sgt. Miklas did not provide his name because he did not think the request was directed towards him, as he was inside the vestibule and § 87(2)(b) was outside. Sgt. Miklas provided his name to § 87(2)(b) earlier in the incident prior to activating his BWC.

Patrol Guide Procedure 203-09 instructs officers to clearly state their name to anyone who requests them to do so (**Board Review 05**).

Patrol Guide Procedure 221-13 (**Board Review 06**) defines an Emotionally Disturbed Person (EDP) as “A person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others.” Officers are instructed to restrain the EDP and remove them to the hospital.

§ 87(2)(g)
BWC shows § 87(2)(b) made the request within earshot of Sgt. Miklas while attempting to follow him inside the stationhouse, directly after their interaction. While Sgt. Miklas testified that he provided his name at another time, no BWC footage captures this, and § 87(2)(b) did not know Sgt. Miklas’ name at the time she filed this complaint. § 87(2)(g)

it is recommended **Allegation A** be **substantiated**.

§ 87(2)(b) testified that Sgt. Miklas threw her papers on the floor, called her “Nigga,” and stated she was “crazy” during the incident. However, a comprehensive review of BWC footage reveals

none of these allegations occurred. It is therefore recommended that **Allegations B, C, D, F & G be unfounded.**

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] While BWC shows the officers wanted § 87(2)(b) to leave and had trouble gaining her compliance, the footage does not capture anything to show § 87(2)(b) posed a legitimate threat during the incident. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

It is therefore recommended that **Allegations E & H be substantiated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 07**).
- Sgt. Miklas has been a member of service for 15 years and has been a subject in two other CCRB complaints involving three other allegations, none of which have been substantiated.

§ 87(2)(g) [REDACTED]
[REDACTED]

Civil and Criminal Histories

- As of October 22, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**Board Review 09**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

Squad: 7

Investigator: Inv. Klingenstein Inv. Aliza Klingenstein December 29, 2021
Signature Print Title & Name Date

Squad Leader: Manager Vanessa Rosen December 29, 2021
Signature Print Title & Name Date

Reviewer: Signature Print Title & Name Date